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CASE #	CASE NAME	HEARING NAME
CVME2402590	HORWATH VS MIRAGE ESTATES HEMET LLC	MOTION TO COMPEL: ANSWER/RESPONSE TO SPECIAL INTERROGATORIES

Tentative Ruling: Unopposed Motion to compel is Granted. Plaintiff to serve code compliant verified responses to Special Interrogatories without objections within 30 days of this order. Sanctions awarded Defendant in the amount of \$669.50

2.

CASE #	CASE NAME	HEARING NAME
CVME2402590	HORWATH VS MIRAGE ESTATES HEMET LLC	MOTION TO COMPEL: PRODUCTION OF DOCUMENTS

Tentative Ruling: Unopposed Motion to compel is Granted. Plaintiff to serve code compliant verified responses to Request for Production of Documents without objections within 30 days of this order. Sanctions awarded Defendant in the amount of \$669.50

3.

CASE #	CASE NAME	HEARING NAME
CVME2402590	HORWATH VS MIRAGE ESTATES HEMET LLC	MOTION TO COMPEL: ANSWER/RESPONSE TO FORM INTERROGATORIES

Tentative Ruling: Unopposed Motion to compel is Granted. Plaintiff to serve code compliant verified responses to Form Interrogatories without objections within 30 days of this order. Sanctions awarded Defendant in the amount of \$669.50.

4.

CASE #	CASE NAME	HEARING NAME
CVME2503640	LA CRESTA PROPERTY OWNERS' ASSOCIATION VS GHAFOURI	ANTI-SLAPP MOTION

Tentative Ruling: Motion Denied as to the 11th Cause of Action (Defamation), 17th Cause of Action (intentional interference with prospective economic advantage), the 18th cause of action (constructive eviction), and the 19th cause of action (quiet enjoyment). Denied as to the 15th cause of action (intentional infliction of emotional distress) and the 16th cause of action (negligent infliction of emotional distress) to the extent those claims are based on physical/non-speech conduct. Motion to Strike is Granted only as to ¶¶ 129, 130, and 134 of the Cross-Complaint for the speech-based allegations under the 15th and 16th causes of action. Cross Defendants to Respond within 30 days of this order.

Timeliness - An anti-SLAPP motion “may be filed within 60 days of the service of the complaint or, in the court’s discretion, at any later time upon terms it deems proper.” (Code Civ. Proc., § 425.16(f).) The purpose of the 60-day limitations is to require presentation and resolution at the outset of litigation before the parties have incurred significant expenditures in litigation and to avoid tactical manipulation of the stay that occurs when an anti-SLAPP motion is filed. (Platypus Wear, Inc. v. Goldberg (2008))

166 Cal.App.4th 772, 783.) Here, Cross-Defendant DeAndero moves to strike the Cross-Complaint filed on 12/9/25. Cross-Complainant served DeAndero with the Cross-Complaint on 4/2/26. (Ghafouri Decl. ¶ 2.) DeAndero filed the instant special motion to strike on 5/28/26, 56 days after the service of the Cross-Complaint, so the motion is timely.

Objections - DeAndero made 44 objections to the declarations of Ghafouri and Scarpino on the grounds of hearsay, lack of personal knowledge, foundation, and improper lay opinion.

The court overrules objections 31, 32, 33, 34, 37, 38, and 39. Scarpino may present his own percipient observations at a meeting he personally attended. The court declines to consider the other objections as they are not dispositive on this instant motion.

The Motion - As a general rule, when a cause of action arises out of the furtherance of a defendant's right of petition or free speech in connection with a public issue, it is subject to a special motion to strike. (Code Civ. Proc., § 425.16(b)(1).) An "act in furtherance of a person's right of petition or free speech... includes any... written or oral statements made before a legislative, executive, judicial proceeding, or any other official proceeding authorized by law." (Code Civ. Proc., § 425.16(e)(1).) Importantly, however, "[t]he anti-SLAPP statute does not insulate defendants from any liability for claims arising from the protected rights of petition or speech. It only provides a procedure for weeding out, at an early stage, meritless claims arising from protected activity." (Baral v. Schnitt (2016) 1 Cal.5th 376, 384 [emphasis in the original].) Thus, courts use a two-step evaluation to determine whether an action is a SLAPP suit subject to a special motion to strike: (1) the plaintiff's claim must arise out of the defendant's protected speech or petitioning; and (2) the defendant's claim lacks even minimal merit. (Navellier v. Sletten (2002) 29 Cal.4th 82, 89; see also Bonni v. St. Joseph Health System (2021) 11 Cal.5th 995, 1009-11.)

The moving party bears the initial burden of showing that the action falls within the class of suits subject to the special motion to strike. (Wilcox v. Superior Court (1994) 17 Cal.App.4th 809, 819.) To meet the initial burden, a defendant need only show that the complaint "arises from" defendant's exercise of free speech or petition rights as defined in §425.16(e). (Equilon Enterprises, LLC v. Consumer Cause, Inc. (2002) 29 Cal.4th 53, 61.) The act which forms the basis for the plaintiff's cause of action or claim must itself have been an act in furtherance of the right of petition or free speech. (City of Cotati v. Cashman (2002) 29 Cal.4th 69, 76-78.) Code of Civil Procedure § 425.16(e) defines what qualifies as an "act in furtherance of a person's right of petition or free speech." It includes: (1) statements made before official proceedings (legislative, executive, or judicial); (2) statements made in connection with issues being considered by such bodies; (3) statements made in a public place or forum about matters of public interest; and (4) any other conduct that furthers the exercise of free speech or petition rights on public issues.

Once the defendant makes a prima facie showing, the burden shifts to the plaintiff to establish a "probability" that it will prevail on whatever claims are asserted against the moving defendant. (Code Civ. Proc., § 425.16(b).) The plaintiff must demonstrate that the complaint is both legally sufficient and supported by a sufficient prima facie showing

of facts to sustain a favorable judgment. (Navellier v. Sletten, supra, 29 Cal.4th at 89, 93.) The court does not weigh the credibility or comparative strength of the evidence but instead accepts as true all evidence favorable to the plaintiff. (Soukup v. Law Offices of Herbert Hafif (2006) 39 Cal.App.4th 260, 291; Overstock.com, Inc. v. Gradient Analytics, Inc. (2007) 151 Cal.App.4th 688, 699-700.)

Protected Activity (Prong One) - To prevail on his motion, DeAndero must establish that Ghafouri's causes of action arise from protected activity. "Arising from" means that the defendant's act underlying the plaintiff's causes of action must itself have been an act in furtherance of the right of petition or free speech. (City of Cotati v. Cashman, supra, 29 Cal.4th at 78.) In other words, "the critical consideration is whether the cause of action is based on the defendant's protected free speech or petitioning activity." (Navellier v. Sletten, supra, 29 Cal.4th at 89.)

Where a cause of action alleges both protected and unprotected activity, the court does not look to the "gravamen" of the cause of action as a whole. (Bonni v. St. Joseph Health System, supra, 11 Cal.5th 995 at 1011, noting that the Supreme Court has rejected the "gravamen" approach directed to an entire cause of action.) Instead, the court must identify each specific "claim" of wrongdoing alleged within the cause of action and determine whether liability for that claim is based on protected or unprotected activity. (Ibid., at 1011, "[t]he attempt to reduce a multifaceted cause of action into a singular 'essence' would predictably yield overinclusive and underinclusive results.") Under the mixed-claim framework, the court will strike only the specific allegations of protected activity. (Ibid.)

Speech-based Claims: Defamation, IIED, and NIED Claims - Here, the Cross-Complaint alleges two categories of DeAndero's verbal communications. First, DeAndero allegedly made statements during the 11/6/25 "Open Forum," where he claimed Ghafouri's campaign "was based on lies," that "he was elected on lies," and compared his campaign to that of a controversial political figure (then NYC Mayor candidate Zohran Mamdani). (XC ¶ 49.) Second, DeAndero allegedly made accusations "during open sessions and executive sessions board meetings" that Ghafouri has been "tampering with" or "interfering with" the Association's easement construction, along with verbal threats that DeAndero would personally ensure Ghafouri was sued. (XC ¶¶ 59-60.)

Under Code of Civil Procedure §425.16(e)(3), protected activity includes "any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest." Homeowner association board meetings function as quasi-governmental public forums because they have been delegated with legislative authority. (Lee v. Silveira (2016) 6 Cal.App.5th 527, 539; Damon v. Ocean Hills Journalism Club (2000) 85 Cal.App.4th 468, 475.) Statements made in connection with board elections, campaigns, and officer's qualifications, represent matters of "a public debate about how the community would be governed in the future." (Du Charme v. International Broth. of Elec. Workers, Local 45 (2003) 110 Cal.App.4th 107, 116.) Further, pre-litigation statements are protected under section 425.16(e)(2) when they concern "the subject of the dispute" and are made in good-faith anticipation of litigation under "serious consideration." (Neville v. Chudacoff (2008) 160 Cal.App.4th 1255,

1266.) The verbal “threats” of lawsuit that DeAndero made concerned the easement and drainage facilities’ disputes that the Association ultimately sued Ghafouri.

Accordingly, DeAndero’s verbal statements during the HOA meeting and his pre-litigation statements constitute protected speech and petitioning activity under section 425.16(e). DeAndero has met his prong one burden for these speech-based claims.

Other Claims (IIED, NIED, Intentional Interference, Constructive Eviction, and Quiet Enjoyment Claims) -Apart from speech-based claims, the remaining challenged claims rest on physical, non-speech conduct.

The XC alleges that DeAndero directed a physical invasion of Ghafouri’s property. It alleges that “[t]he contractors used heavy machinery to excavate [a large trench], grade, and build a retaining rock wall... obstructing access to [Ghafouri]’s lower property, upper barn, and large circular equestrian training arena of the parcel.” (XC ¶¶ 57, 120.) This prevented Ghafouri from “renting the property or allowing a tenant to use the arena and barn,” resulting in “ongoing economic damage, loss of rental income, and diminution of property utility.” (Id., ¶¶ 124, 136.)

Physical trespass, unauthorized construction, and the physical obstruction of real property do not constitute protected speech or petitioning under section 425.16. (Golden Gate Land Holdings, LLC v. Direct Action Everywhere (2022) 81 Cal.App.5th 82, 91, noting that trespass is not protected speech or petitioning activity; Spencer v. Mowat (2020) 46 Cal.App.5th 1024, 1036, noting that harassment and property obstruction (such as trail-obstructing) are not protected speech or petitioning activity.

Under the Baral and Bonni standards, DeAndero fails to meet his prong one burden as to the 17th (intentional interference with prospective economic advantage), 18th (constructive eviction), and 19th (quiet enjoyment) causes of action because the property-interference claims do not arise from protected speech or petitioning. DeAndero also fails to meet his prong one burden as to the physical/non-speech conduct portions of the 15th (IIED) and 16th (NIED) causes of action. Accordingly, the court denies DeAndero’s motion to strike these claims and the physical conduct portions of the allegations.

Probability of Prevailing (Prong Two) - Because DeAndero has met his burden showing that the defamation claim and the speech-based emotional distress allegations arise from protected activity, the burden then shifts to Ghafouri to demonstrate a probability of prevailing on his cross-claims. (Code Civ. Proc., § 425.16(b)(1).) This requires a showing of “minimal merit.” (Navellier v. Sletten, supra, 29 Cal.4th at 88-89.)

11th Cause of Action for Defamation - Defamation is an invasion of the interest in reputation. The tort involves the intentional publication of a statement of fact that is false, unprivileged, and has a natural tendency to injury or which causes special damages.” (Smith v. Maldonado (1999) 72 Cal.App.4th 637, 645.) Defamation consists of two forms - libel and slander. (Burrill v. Nair (2013) 217 Cal.App.4th 357, 382.) “Libel is a false and unprivileged publication by writing, printing, picture, effigy, or other fixed representation to the eye, which exposes any person to hatred, contempt, ridicule, or obloquy, or which causes him to be shunned or avoided, or which has a tendency to

injury him in his occupation.” (Civil Code § 45.) Slander is a false and unprivileged publication, orally uttered that indicates an individual was involved in a crime, has an infectious or contagious disease, that tends to injure someone’s reputation, pertains to the individual’s lack of chastity, or by natural consequences causes actual damages. (Civil Code § 46.)

The Cross-Complaint alleges that DeAndero made defamatory statements about Ghafouri “in a public forum,” including that Ghafouri’s “campaign and election were based on lies” and comparing him to political figures and labels such as “terrorist sympathizer,” “antisemite,” “communist,” and “extremist.” (XC ¶ 105.) To defeat the motion, Ghafouri must present admissible evidence of an unprivileged, false statement of fact published to a third party that caused damage. (Balla v. Hall (2021) 59 Cal.App.5th 652, 675.)

Ghafouri submitted the declaration of Scarpino, a retired Riverside County Sheriff’s Department Lieutenant and former elected director of the Association from October 2022 through October 2024. (Scarpino Decl., ¶ 2.) Scarpino declares that he attended the 11/6/25 board meeting and heard DeAndero “publicly” speak “in a loud, emphatic, and confrontational tone of voice” that “Ghafouri’s campaign was based on lies” and that Ghafouri “was elected based on lies.” (Id., ¶¶ 5-6.) Scarpino further testifies that he understood these statements “as direct accusations that Director Ghafouri was dishonest, had lied to obtain his position on the Board, and was unfit or improper to serve as a director.” (Id., ¶ 14.) He further asserts that he “did not interpret Mr. DeAndero’s remarks as general political commentary” and that he “understood them as explicit attacks on Director Ghafouri’s honesty, conduct, character, and overall fitness to serve as an LCPOA director—consistent with the pattern of similar negative statements Mr. DeAndero has made at virtually every opportunity since Director Ghafouri was elected to the Board.” (Id., ¶ 15.) If proven, the statements invade Ghafouri’s reputation.

Besides, the litigation privilege does not apply here as DeAndero’s attack on Ghafouri’s integrity lacks a relation to the Association’s easement and drainage dispute. (Ruiz v. Harbor View Community Assn. (2005) 134 Cal.App.4th 1456, 1472-73, holding that the litigation privilege does not protect a defamatory letter to a homeowner; [“The litigation privilege does not retroactively protect any and all communication preceding the litigation; the privilege applies from the point the contemplated litigation is seriously proposed in good faith for purposes of resolving the dispute.”])

Because the court does not weigh the credibility of the evidence but instead accepts as true all evidence favorable to the cross-complainant at this stage, the Scarpino declaration provides a sufficient prima facie showing of minimal merit.

15th and 16th Causes of Action for Emotional Distress -The elements of intentional infliction of emotional distress (IIED) are: (1) extreme and outrageous conduct by the defendant with the intention of causing or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff’s suffering severe or extreme emotional distress; and (3) actual and proximate causation. (Christensen v. Superior Court (1991) 54 Cal.3d 868, 903.) Conduct must be “so extreme as to exceed all bounds of that usually tolerated in a civilized society.” (Huntingdon Life Sciences, Inc. v. Stop

Huntingdon Animal Cruelty USA, Inc. (2005) 129 Cal.App.4th 1228, 1259.) Here, Ghafouri has not pled any extreme and outrageous conduct. Heated verbal comments and insults made during an HOA dispute are not sufficient. They do not rise to the level of extreme and outrageous conduct as a matter of law. (Restatement (Second) of Torts (2006), § 46, noting that liability “does not extend to mere insults, indignities, threats, annoyances, [or] petty oppressions”.)

The elements of negligent infliction of emotional distress (NIED) are: (1) legal duty to use due care; (2) breach of such legal duty; (3) damage or injury; and (4) cause of the resulting damage or injury. (Huggins v. Longs Drug Stores California, Inc. (1993) 6 Cal.4th 124, 129.) There is no tort of negligent infliction of emotional distress, but instead it is a form of negligence. (Delfino v. Agilent Technologies, Inc. (2006) 145 Cal.App.4th 790, 796 n.4.) Negligent infliction of emotional distress is divided into two claims, direct victim claims or bystander claims. (Smith v. Pust (1993) 19 Cal.App.4th 263, 273.) Here, Ghafouri asserts a “direct victim” claim. However, he has not established a prima facie case that DeAndero, as a fellow homeowner, owed him a legal duty of care.

Accordingly, Ghafouri cannot show a probability of prevailing on the speech-based allegations of emotional distress. In conclusion, the Court grants the motion to strike only to the allegations relating to speech-based conduct (specifically, paragraphs 129, 130, and 134 of the Cross-Complaint, i.e., the public political insults and labels), but not to the entire causes of action.

The 15th and 16th causes of action survive based on the remaining non-protected physical/non-speech conduct allegations of trespass, unauthorized construction, and property access blockades.